YOUR MISSISSIPPI NON-CONVICTION EXPUNGEMENT PACKET

Prepared for Bartholomew-Emmanuel de la Cruz-Featherstone

This page is a guide to the packet. It is not a filing and it is not given to the court.

WHAT THIS PACKET IS

This is a self-help packet for the Mississippi non-conviction pathway in Miss. Code Ann. Section 99-19-71(4). It is prepared from the facts you verified against your records. The contents list below names every document it contains.

PACKET CONTENTS

The pages are delivered in this order.

1. Your Mississippi Non-Conviction Expungement Packet - this cover and contents page, which is not filed with the court.
2. Petition for Expunction of Record - the petition you file, quoting Sec. 99-19-71(4) and pleading the one statutory category your record shows.
3. Order Granting Expunction of Record - the order you tender with the petition for the judicial officer to consider; the Court alone completes, signs and enters it.
4. Certificate of Service - your record that a copy went to the prosecuting authority, completed only when the copy actually goes out.
5. Exhibit Checklist - the checklist of what you attach - certified disposition as Exhibit A and docket sheet as Exhibit B in every case; an indictment is conditional and unlettered.
6. Filing Instructions - what you do, in order, what the order does once entered, and when to stop and get help instead of filing.

The packet specification for this route groups the Certificate of Service and the Exhibit Checklist as one document, which is why it describes a five-part packet where six items are listed above.

RECORDS TO HAVE BESIDE YOU

Have these in front of you before you write anything on these pages, and copy from them rather than from memory:
- the certified copy of the disposition or sentencing order showing how the case ended;
- the docket sheet for the case, whose exact wording you copy;
- the indictment, only where a grand jury actually returned one;
- your own Mississippi criminal history record, so you see every case before you file.

With those beside you, each of these must be true before the packet is ready to file:
- Compare the court, filing location, cause number, and your legal name against the certified disposition and docket sheet.
- Confirm an actual arrest and release, then copy the exact charge, citation, classification, dates, arrest

name, aliases, agency identifier, and disposition wording from the records rather than memory.
- Insert the participant-supplied certified disposition as Exhibit A and docket sheet as Exhibit B; the generated assembly checklist is not an attachment.
- Do not sign in advance. Sign the Petition and Verification in the physical presence of a notary after taking an oath or affirmation, and have the notary complete the certificate and official stamp.
- Use the court-approved MCIC identifier channel and remove the confidential addendum from participant and service copies.
- Confirm the prosecuting office, current service address, timing, and any approval-as-to-form practice with the court of origin.
- Ask the court of origin about the filing method, fee or waiver, and number of copies.
- Leave signature and service-time fields blank until you perform those acts, and leave prosecutor and court fields for those officials.
- Stop and get legal help if the disposition, venue, related pending matter, prosecutor treatment, or immigration effect is unclear.

SIGNING AND NOTARIZATION

DO NOT SIGN THE PETITION IN ADVANCE. You must sign the Petition and its Verification in the physical presence of a notary public. Bring satisfactory identification. The notary must administer an oath or affirmation, witness the signature, complete the notarial certificate, and affix the official notary stamp. The packet is not filing-ready until those steps are complete.

That paragraph is printed here word for word from the packet specification this route binds, which is the record that governs what this page must carry, and the petition in this packet does what it says. The petition carries a VERIFICATION on its own sheet, under the petition's caption: a sworn statement in your name, a jurat, and a notarial certificate with the venue, the notary's signature and printed name, the commission details and the seal space all left blank. Notarization is required on this packet. It was once recorded as an unresolved question, and it is no longer one: the packet specification and the owner's direction of 3 September 2026 settle it, and the older intake note is not permission to leave the verification out. You still ask the records office of the court that heard the case about that court's own local requirements, as the filing instructions say, but not about whether to have the petition notarized.

IMPORTANT LIMITS

LegalEase does not file this packet and does not guarantee relief. Before filing, confirm the filing method, local form preference, fee or waiver treatment, copy count, and service practice with the records office of the court that handled the case. Stop and get legal help when a record is ambiguous or a stopping condition in your guide applies.

PETITION FOR EXPUNCTION OF RECORD

IN THE ..... COURT OF ..... , MISSISSIPPI
(WRITE THE COURT IN WHICH THE CASE WAS PENDING - JUSTICE, COUNTY, CIRCUIT OR MUNICIPAL - AND ITS COUNTY, OR FOR A MUNICIPAL COURT ITS CITY)

Plaintiff name exactly as shown on the docket: .....
v.
Bartholomew-Emmanuel de la Cruz-Featherstone, PETITIONER

Cause No. .....
(copy the cause number from the court record; where the court assigns a new number for the expungement it is supplied at filing)

PETITION FOR EXPUNCTION OF RECORD

COMES NOW Bartholomew-Emmanuel de la Cruz-Featherstone, Petitioner in the above-styled and numbered cause, appearing pro se, and files this Petition for Expunction of Record pursuant to Miss. Code Ann. Section 99-19-71(4), and in support thereof would show unto the Court the following, to-wit:

FIRST. Miss. Code Ann. Sec. 99-19-71(4) provides: 'Upon petition therefor, a justice, county, circuit or municipal court shall expunge the record of any case in which an arrest was made, the person arrested was released and the case was dismissed or the charges were dropped or there was no disposition of such case, or the person was found not guilty at trial.'

SECOND. The identifying facts of the case, each taken from the court record:

Petitioner's date of birth: 1961-12-31

What the petitioner was charged with, worded as the court record words it, with the Mississippi Code section where the record states one:
.....
.....

Date of the offence alleged:
.....

Date of arrest or citation:
.....

Agency that made the arrest or issued the citation:
.....

That agency's own case or citation number, where the record states one:
.....

Date on which the case ended, from the record:
.....

Location of arrest:
.....

Release date or record source confirming release after arrest:
.....

Exact wording of the certified disposition:
.....

A certified copy of the disposition is attached as Exhibit A. A copy of the docket sheet is attached as Exhibit B.

Petitioner presents the following relevant identifying information in support of this Petition:

Name used at the time of arrest: .....
Aliases shown on the record: .....
Date of Birth: 1961-12-31
Social Security Number: XXX-XX-....
Date of Arrest: .....
Arresting Agency: .....
Agency Number: .....
Charge at Arrest: .....
Code Section or Ordinance: .....
Charge Classification: .....
Race: .....
Sex: .....

THIRD. The case ended without a conviction, in the statutory category marked below. Mark EXACTLY ONE, and only the one your own court paperwork shows; nothing is marked for you, and an entry such as 'passed to the file' or 'retired to the file' is a reason to stop and get advice rather than to mark any box:

[ ] An arrest was made, the petitioner was released, and the case was dismissed.
[ ] The charges were dropped.
[ ] There was no disposition of the case.
[ ] The petitioner was found not guilty at trial.

FOURTH. Where a grand jury returned an indictment in the case, and only then, its date and court are stated here from the record (leave blank where the case was never indicted; most are not):
.....

FIFTH. Subsection (4) imposes no waiting period, no completion requirement and no first-offender

requirement, and none is asserted here. The one-felony-per-lifetime cap of subsection (2)(a) applies to felony conviction expungement only and is not spent by this petition.

PRAYER FOR RELIEF

WHEREFORE, PREMISES CONSIDERED, Petitioner respectfully prays that this Honorable Court enter an Order of Expunction directing that all records of the arrest and charge described herein be expunged and that the Clerk forward a certified, sealed copy of the Order and the approved MCIC identifier material to the Mississippi Department of Public Safety, Criminal Information Center, Arresting agency: ....., and these other recordkeeping agencies identified from the record: .....

I declare that the facts stated in this petition are true and correct.

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally, in the notary's presence and at the same time as the verification on the next page - never in advance. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Bartholomew-Emmanuel de la Cruz-Featherstone
MAILING ADDRESS: 15522 Lower Delta Bottomland Access Road, Building 7, Unit 41-B, Greenwood, Mississippi 38930-6604
TELEPHONE: (769) 555-0102 ext. 8846
EMAIL: bartholomew.emmanuel.de.la.cruz.featherstone@longmailexample.org

IN THE ..... COURT OF ..... , MISSISSIPPI
Plaintiff name exactly as shown on the docket: .....
v.
Bartholomew-Emmanuel de la Cruz-Featherstone, PETITIONER

Cause No. .....
(Write the same court, county or city and cause number as the petition's caption.)

VERIFICATION

(Part of the Petition for Expunction of Record above; filed attached to it.)

I, Bartholomew-Emmanuel de la Cruz-Featherstone, being first duly sworn, state that I am the Petitioner in this action; that I have read the foregoing Petition for Expunction of Record; and that the factual statements contained in the Petition are true and correct to the best of my knowledge, information, and belief.

SIGNATURE OF PETITIONER .....

(Signed in the notary's presence, after the oath or affirmation - never in advance. Nothing on this page is signed, dated or completed for the petitioner.)

STATE OF .....
COUNTY OF .....

(The venue is where the notarial act actually takes place. It is left blank here and is never taken from where the petitioner lives.)

Signed and sworn to or affirmed before me on this _____ day of _____, 20____, by Bartholomew-Emmanuel de la Cruz-Featherstone.

SIGNATURE OF NOTARY PUBLIC .....

PRINTED NAME OF NOTARY PUBLIC .....

MY COMMISSION EXPIRES .....
COMMISSION IDENTIFICATION NUMBER .....

SEAL - space for the notary's official stamp:

(The notary completes this certificate, signs it and affixes the official stamp, after the petitioner appears in person, is identified, takes the oath or affirmation and signs above. Notary Rule 6.3 and Miss. Code Ann. Sec. 25-34-31. An acknowledgment is not the same notarial act.)

ORDER GRANTING EXPUNCTION OF RECORD

IN THE ..... COURT OF ..... , MISSISSIPPI
(WRITE THE COURT IN WHICH THE CASE WAS PENDING - JUSTICE, COUNTY, CIRCUIT OR MUNICIPAL - AND ITS COUNTY, OR FOR A MUNICIPAL COURT ITS CITY)

Plaintiff name exactly as shown on the docket: .....
v.
Bartholomew-Emmanuel de la Cruz-Featherstone, PETITIONER

Cause No. .....
(copy the cause number from the court record; where the court assigns a new number for the expungement it is supplied at filing)

ORDER GRANTING EXPUNCTION OF RECORD

(This order is tendered with the petition for the Court's consideration, which is Mississippi practice. Every finding below is a proposal for the Court to make; nothing in it is an assertion of fact by the preparer, and nothing on this page is completed for the Court.)

THIS CAUSE came before the Court on the petition of Bartholomew-Emmanuel de la Cruz-Featherstone for expungement of the record of a case under Miss. Code Ann. Sec. 99-19-71(4), and the Court, having considered the petition, would find that the case falls within Sec. 99-19-71(4): an arrest was made, the person arrested was released, and the case was dismissed or the charges were dropped or there was no disposition of the case, or the person was found not guilty at trial.

The record subject to this Order is identified as follows:

Name used at the time of arrest: .....
Aliases shown on the record: .....
Date of Birth: 1961-12-31
Social Security Number: Provided in the confidential MCIC addendum; last four ....
Date of Arrest: .....
Arresting Agency: .....
Agency Number: .....
Charge at Arrest: .....
Code Section or Ordinance: .....
Charge Classification: .....
Race: .....
Sex: .....

IT IS THEREFORE ORDERED that the record of the case described in the petition is expunged, and that every person and agency keeping an official record of the arrest or the case shall expunge it, including the following, each named by the petitioner from the case record:

Agency that made the arrest or issued the citation, as the order must direct it:
.....

Sheriff's department of the county, where its records carry the case:
.....

Any other person or agency keeping an official record of the case:
.....

PROVIDED that the existing records of fingerprints are excepted from this order, as Miss. Code Ann. Sec. 99-19-71 provides; that the Mississippi Criminal Information Center shall retain a nonpublic record solely for the purpose of determining, in subsequent proceedings, whether the person is a first offender; and that upon entry of this order the petitioner is restored, in contemplation of law, to the status the petitioner occupied before the arrest, and shall not be held thereafter guilty of perjury for failure to recite the arrest, except as Sec. 99-19-71(3) provides for first-offender determinations.

IT IS FURTHER ORDERED that the Clerk shall forward a certified copy bearing the Court's seal, together with the court-approved MCIC identifier material, to the Mississippi Department of Public Safety, Criminal Information Center, Arresting agency: ....., and these additional custodians: ..... The confidential MCIC identifier addendum is incorporated into the certified nonpublic processing copy when the court approves that method.

SO ORDERED.

ENTERED, this the ..... day of ....., ...

JUDICIAL OFFICER OF THE COURT .....
(the Court alone completes, signs and enters this order)

APPROVED AS TO FORM, for the prosecuting authority:
.....
(some districts expect the prosecuting authority to approve the order as to form before it is presented; this block is never completed by the preparer and is never pre-signed)

CERTIFIED TRUE COPY
The clerk completes this certification after entry of the Order and affixes the Court's seal.

CLERK SIGNATURE .....
CERTIFICATION DATE .....
COURT SEAL - left blank for the clerk

CONFIDENTIAL MCIC IDENTIFIER ADDENDUM

COURT AND MCIC PROCESSING COPY - DO NOT INCLUDE IN PUBLIC OR SERVICE COPIES. This addendum uses the approved synthetic-review layout. A real packet requires the court of origin to confirm the identifier-delivery method before participant delivery.

Name used at the time of arrest: .....
Aliases shown on the record: .....
Date of Birth: 1961-12-31
Social Security Number: .....
Date of Arrest: .....
Arresting Agency: .....
Agency Number: .....
Charge at Arrest: .....
Code Section or Ordinance: .....
Charge Classification: .....
Race: .....
Sex: .....
Court Case Number: .....
Disposition: .....
Identifier Delivery Method: .....
Method Confirmation Source: .....

CERTIFICATE OF SERVICE

IN THE ..... COURT OF ..... , MISSISSIPPI
(WRITE THE COURT IN WHICH THE CASE WAS PENDING - JUSTICE, COUNTY, CIRCUIT OR MUNICIPAL - AND ITS COUNTY, OR FOR A MUNICIPAL COURT ITS CITY)

Plaintiff name exactly as shown on the docket: .....
v.
Bartholomew-Emmanuel de la Cruz-Featherstone, PETITIONER

Cause No. .....
(copy the cause number from the court record; where the court assigns a new number for the expungement it is supplied at filing)

CERTIFICATE OF SERVICE

I, Bartholomew-Emmanuel de la Cruz-Featherstone, Petitioner pro se, certify that on the date stated below, I caused a true and correct copy of the foregoing Petition for Expunction of Record and proposed Order Granting Expunction of Record to be delivered to Prosecuting authority: .....
Service address: ..... The confidential MCIC identifier addendum must not be included in the service copy.

Prosecuting authority served - for a circuit court case the district attorney for the circuit district, for a county, justice or municipal court case the county or municipal prosecuting attorney (write the office as the court record names it):
.....

Mailing address at which that office was served:
.....
.....

Manner of delivery (mark the one used):
[ ] By United States mail
[ ] By hand delivery

DATE OF DELIVERY OF THE COPY .....

SIGNATURE OF PETITIONER .....

(This page is completed and signed by the petitioner when the copy actually goes out. A date or a signature written before the copy goes out would be false.)

EXHIBIT CHECKLIST

Prepared for: Bartholomew-Emmanuel de la Cruz-Featherstone

Attach these exhibits to the petition. Each is named here and obtained by you; nothing is obtained, inspected or authenticated for you.

EXHIBIT A - IN EVERY CASE. A certified copy of the disposition or sentencing order showing how the case ended, from the records office of the court that heard the case. Mississippi has no central portal and each court holds its own file, so identify the right court first.

EXHIBIT B - IN EVERY CASE. A copy of the docket sheet, from the records office of the court that heard the case. Its wording matters: 'passed to the file' or 'retired to the file' is a reason to stop and get advice.

CONDITIONAL, UNLETTERED: A copy of the indictment from the circuit records office, only if a grand jury returned an indictment in this case. Leave it out if the case was never indicted.

ADVISABLE:

- Your own Mississippi criminal history record, from the Mississippi Criminal Information Center, so you can see every case on your record before you file.

FILING INSTRUCTIONS

This packet is prepared for expunging the record of a Mississippi case that did not end in a conviction, under Miss. Code Ann. Sec. 99-19-71(4).

Prepared for: Bartholomew-Emmanuel de la Cruz-Featherstone

Participant-owned open item: Optional personal impact statement not provided; not required to file.

WHAT YOU DO, IN ORDER

STEP ONE. Identify the correct court and county first. Mississippi has four trial court levels - justice, county, circuit and municipal - and the petition goes to the court in which the case was pending.
STEP TWO. Ask that court's records office for the case file, the docket sheet, and a certified copy of the order showing how the case ended. Copy the docket wording exactly; do not paraphrase it.
STEP THREE. Call that records office before filing and ask whether that court has its own preferred petition or order form or any additional requirement. Mississippi has no statewide form and practice varies by county and circuit district.
STEP FOUR. Fill in every dotted blank this packet's participant instructions list, from the records, and mark exactly one statutory disposition category - only the one your paperwork shows.
STEP FIVE. Sign the petition and swear to the verification in front of a notary; the next section says how.
STEP SIX. File the petition, with the proposed order and the certificate of service, with the court in which the case was pending, and confirm the filing fee first. No fee amount is published in this packet: whether Sec. 99-19-72's fee reaches a subsection (4) petition at all is a recorded open question - there is no conviction to expunge - and county practice differs, so ask the court's records office for the amount, and for any pauper's-affidavit route if you cannot pay.
STEP SEVEN. Deliver a copy of the petition and the proposed order to the prosecuting authority contemporaneously with filing - for a municipal court case the city prosecutor, not the district attorney - and complete the certificate of service when the copy actually goes out. The ten days' written notice in Sec. 99-19-71(2)(b) belongs to the felony conviction subsection and is not imported here, but some districts expect notice and prosecutor approval as local practice.
STEP EIGHT. Expect that some districts want the district attorney to approve the order as to form before the judicial officer signs. That is a negotiation this packet does not conduct for you.
STEP NINE. After the order issues, obtain certified copies and deliver them to every agency named in the order.

SIGNING THE PETITION AND THE VERIFICATION

Do not sign the Petition or Verification in advance. Complete and check the factual information first. Bring the packet and satisfactory identification to a notary. Take the oath or affirmation and sign in the notary's presence. Have the notary complete the certificate and affix the official stamp. Keep the verification attached to the petition. The packet is not ready for filing until the required signatures and notarial act are complete.

A notary who only watches you sign has not done this: the rules require personal appearance,

identification and an oath or affirmation, and an acknowledgment is a different act. The notary states where the act happens - where you are standing, not where you live.

WHAT THE ORDER DOES, FROM THE RECORD

- Relief under subsection (4) is mandatory on the statute's own words - 'shall expunge' - once the case falls in a statutory category.
- Fingerprint records are excepted from expungement.
- The Mississippi Criminal Information Center keeps a nonpublic record solely for first-offender determinations in subsequent proceedings.
- An employer may still ask whether an order of expunction has been entered.
- This petition does not spend the one-felony-per-lifetime cap, which belongs to felony conviction expungement under subsection (2)(a).

WHEN TO STOP AND GET HELP INSTEAD OF FILING

Stop, and take this packet to a lawyer or a legal-aid office, if any of these is true:
- the disposition is ambiguous on the docket - particularly 'passed to the file', 'retired to the file', or a remand;
- the case moved between courts and it is unclear where it was pending;
- this was a nonadjudication, a pretrial intervention programme, or an intervention or drug court, which end differently and route differently;
- a charge arising from the same events is still pending;
- anyone charged with you has a case that is still open;
- the district attorney declines to approve the order as to form;
- you are not a United States citizen - a non-conviction disposition can still carry immigration consequences.

WHAT THIS PACKET DOES NOT TELL YOU

- The filing fee amount, and whether Sec. 99-19-72's fee reaches a subsection (4) petition in this court. The records office of the court that heard the case is the authority that can answer both.
- Whether your court has local requirements of its own beyond the notarized verification in this packet - preferred wording, an extra copy, a cover sheet. The same office can tell you. Whether the petition must be notarized is not open: it must be, and the verification is in the packet.
- Your court's own preferred forms or local requirements, which vary by county and district. Ask before you file.

WHAT THIS PACKET IS NOT

This is a prepared set of composed pleadings and process pages. Mississippi publishes no statewide expungement form, which is why these pages are composed. It is not legal advice, it is not filed for you, and it does not decide the classification of an ambiguous docket entry.